Dinesh Chand Sharma Son Of Late Sita Ram ... vs State Of U.P. on 18 September, 2007

Equivalent citations: 2008CRILJ1524

JUDGMENT

M.K. Mittal, J.

1. This appeal has been filed by Dinesh Chandra Sharma son of late Sita Ram Sharma, resident of Mohalla Hayat Nagar, P.S. Hayat Nagar, District Moradabad against the Judgment and order dated 20.12.2006 passed by Sri Ashok Kumar, Addl. Sessions Judge, F.T.C. No. 3, Muradabad in S.T. No. 128 of 2006 (Crime No. 726 of 2005) whereby he found the appellant guilty and convicted him under Section 354 IPC and sentenced him to undergo rigorous imprisonment for one and half years.

2. Brief facts of the case are that a first information report Ex-ka-1 written by Khan Suhail Azam was lodged by Dil Nawaz father of the prosecutrix at P.S. Hayatnagar, District Moradabad on 12.9.2005 at 1.45 p.m. alleging that his daughter who was a student of Class IV in Shishu Shiksha Niketan, run by accused was asked by the accused on 12.9.2005 at about 1 p.m. when the school closed for the day, to stay back as he wanted her to recite a lesson. When other students and teachers left the school, accused took the daughter of the informant inside the room at about 1 p.m. and started behaving indecently and also started opening her 'nara' forcibly. Her daughter was scared and she shouted loudly and on hearing the noise Mohd. Munawar son of Maqbool Khan, Imtyaz son of Sazid Khan and others of Mohalla reached there and saw the incident and saved his daughter from Dinesh Chandra Sharma accused.

3. Constable Daya Shanker, C.W.-1 was posted as constable clerk at P.S. Jiayat Nagar on 12.9.2005. Written report was presented by Dil Nawaz and an that basis he prepared the check report Ex-ka-4. Case was registered in the General Diary at rapat No. 24 and its copy has been proved as Ex-ka-5. This witness has also stated that Sub Inspector Upendra Singh and constable returned to the police station along with accused at 3.10 p.m. and entry was made in the (General Diary at rapat No. 26. The witness proved the copy of the general diary Ex-ka-6. He also proved the photocopies of the original General Diarty No. 24 and 26 as Ex-ka-7 and Ex-ka 8.

4. Sub inspector Upendra Singh P.W.-4 was posted at P.S. Hayat Nagar on 12.9.2005. He started the investigation on the same day and after copying the report and the general diary in the case diary, interrogated the check writer. Accused was arrested same day. On 13.9.2005 he interrogated the informant Dil Nawaz and his daughter the prosecutrix. He inspected the place of occurrence at the pointing of the informant and prepared the site, plan Ex-ka-2. He also interrogated the witnesses Mohd. Manzoor and Imtiyaz Khan on 14.9.2005. After completing the investigation submitted the charge sheet Ex-ka-3 against the accused under Section 376/511 IPC on 14:9.2005.

5. Case of the accused was committed to the court of sessions by learned C.J.M. by order dated 20.3.2006. Charge was framed against the accused under Sections 376/511 IPC on 5.7.2006. He pleaded not guilty and claimed trial.

6. In support of its case, prosecution led evidence and besides the above noted formal witnesses examined Dil Nawaz P.W.-1, prosecutrix P.W.-2 and Imtiyaz P.W.-3 as witnesses of fact and occurrence. These witnesses have stated about the prosecution case.

7. Accused was examined under Section 313 Cr.P.C. and he admitted that prosecutrix was a student in Class-IV. The school used to close at 1 p.m. However he denied the remaining prosecution case and contended that prosecutrix was not present on that date in his school at the time of the alleged incident and that he did not commit any offence as alleged. The witnesses have given false statements. The police made wrong investigation under political pressure and the pressure of the Muslim community. His school was in Muslim dominated area and the people there wanted to get his school closed and conspired with the police. Witnesses have given evidence against him as they are relations and were under the influence of the police and the Muslim community. Muzammil Danish, relation of the informant had Nighat Public School but the school of the accused was more famous and popular and the children of Danish also studied in this school. However he did not like that his school should run. Therefore he, in collusion with the informant in order to get his school closed conspired and falsely implicated him in this case.

8. Accused examined Smt. Usha Gupta, D.W.-1 in defense. Smt. Usha Gupta has stated that on 12.9.2005 at about 12 noon she had gone to school Shishu Shiksha Niketan, Hayat Nagar as there was some vacancy of teachers. At that time accused Dinesh Chand Sharma was also manager of the school. He asked her to wait as the school was to close at 1.00 p.m. She continued to stay in the office of Dinesh Chand Sharma who also remained there. When the school closed some children went to their home and some parents also came to take their children. At that time, about 100 to 125 persons belonging to Muslim community came to the school and told the accused that he was spoiling the children as he was inciting them against their religion. Although he was asked earlier to vacate but he did not and that they would teach him a lesson. Thereafter they started beating him. By the time she remained there and the accused was beaten, no girl was present there and she did not see Dinesh Chand Sharma teasing any girl. The public took Dinesh Chand Sharma to police station. Dil Nawaz filed a false report against the accused. It was with intention to get his school closed and the school closed after the incident.

9. Learned Trial Court after considering the evidence of the parties came to the conclusion that the incident had taken place on 12.9.2005 at about 1 p.m. in the school of the accused and he outraged the modesty of the daughter of the informant. Learned Trial Court has also held that there are some contradictions in the testimony of the witnesses and also improvement in the prosecution case as taken in the first information report and as stated by the prosecutrix, in the statement on oath, particularly with regard to the attempted rape. He also held that the prosecution failed to establish the offence under Section 376/511 IPC against the accused. According to him the prosecution could succeed in establishing the offence under Section 354 IPC and consequently he found him guilt and convicted as aforesaid. Feeling aggrieved this appeal has been filed.

10. I have heard Sri Umesh Shanker, learned Counsel for the appellant, Sri Rajeev Patel learned A.G.A. and perused the trial Court record. Learned Counsel for the appellant and learned A.G.A. also filed written arguments.

11. Contention of learned Counsel for the appellant is that appellant has been falsely implicated in this case and he became the victim of the communal discord and the pressure that was exercised by the people belonging to the Muslim community on the police as well as the informant. According to him people in that area particularly Muzammil Danish who happens to be a relation of the informant runs a school in that area who wanted that the school run by the appellant be closed and for that, this case was concocted and the appellant was implicated. Learned Counsel for the, appellant has further contended that learned Trial Court has referred to the contradiction and improvement and also the latches of the Investigating Officer and further contended that the accused was wrongly charged under Section 376/511 IPC and that the accused was correctly acquitted of that charge but he also contended that the learned Trial Court has erred in convicting the appellant under Section 354 IPC and that the accused should have been acquitted of that charge also and that the appeal is liable to be allowed.

12. Against it, learned A.G.A. has contended that although there are some contradiction and improvement rather exaggeration in the prosecution case as taken but accused has been rightly convicted under Section 354 IPC. He has also contended that the defense version that the Muslim of the area particularly Muzammil Danish wanted the school of the appellant to be closed is incorrect and that the accused did not adduce any evidence to substantiate his defense version.

13. In this case, first information report was lodged by Dil Nawaz, P.W.-1 and the perusal of the report shows that he was not an eye witness of the incident. In the first information report it has also not been mentioned as to who informed him about the incident. He has stated on oath that his daughter was a student of Class-IV in Shishu Shiksha Niketan and had gone to school. The school used to close at 1 p.m. Accused had asked her to wait for some time as he had to talk to her. The girl stayed back and when all the children and the teachers left the school, accused took her daughter inside the room and behaved indecently with her. When he tried to open the 'nara' of her 'pajama' forcibly, the girl shouted and Mohd. Manzoor and Ishtiyaq and others came there and saw the incident and saved the girl from Dinesh Chand Sharma. He got the report scribed by Khan Suhail Azam and put his thumb mark after it was read over to him. He has proved the report EX-ka-1. In cross examination he has stated that he could not tell the name of the person who had told him about the incident. Several persons told him. He came to know about the incident within ten minutes and reached the school within 10-15 minutes. At that time police personnel were not present. However soon thereafter police also came. He narrated the story to the police and also gave the report. When he had reached the place the nara of the 'salwar' had been snapped. People of the vicinity had told him that accused had asked his daughter to stay. He had mentioned the fact that the people of vicinity told about this incident and if it is not there in the report fie could not explain. When the police had come at the place of occurrence he and his daughter were present there. The people belonging to Muslim community were living in large number in the vicinity where the school of Dinesh Chand Sharma was situate. Nighat Public School was at a distance from the school of appellant accused. The house of Imtiaz and Manzoor are not adjacent to the school. He denied the

suggestion that Dinesh Chand Sharma did not tease his daughter. He did not notice any injury on the person of his daughter. Her daughter narrated the entire incident. But he did not mention this fact in his report. When he had reached the place Imtiaz and Manzoor were also present and the accused was also present in that room. This statement of the witness shows that he was informed about the incident not only by his daughter but also by the people of the vicinity. He has specifically stated that when he had reached Manzoor and Imtiaz were present there and this fact has not been challenged and therefore it is proved form his statement that he was informed by his daughter as well as by these two persons. Imtiaz has also stated that he had informed Dil Nawaz about that incident. The informant gave the first hand version of the incident and it shows that the accused had only teased the girl. There is no reference of any attempt to rape in the first information report.

14. Prosecutrix has been examined as P.W.-2 and she is most important witness of the incident. Her statement shows that she was able to understand the questions and to reply the same, although she was child witness and was aged about 12-13 years when her statement was recorded on 11.8.2006. She has stated that the school had closed at 1 p.m. and the accused Dinesh Chand Sharma had asked her to stay as he wanted her to recite some lesson. After the teachers and other children went, the accused took him in the room and closed the door. Accused kissed her on her lips and cheeks and opened her salwar and also removed his pant and showed her his organ and also touched her genitals with hand. When she raised alarm her father Manzoor and Imtiyaz came and they entered the room after breaking open the door and apprehended the appellant. At that time her grand mother and mother also came and she was sent with them. In cross examination she has stated that Dinesh Chand Sharma was the only teacher in the school. There was no peon or chaukidar. There were about 200 students in the school and it was from L.KG. to Vth Standard. In her class there was no Hindu child. She had shown the place of occurrence to the Investigating Officer on the date of the incident itself. When she had raised alarm there was a girl on the second floor of the house in front of the room and that girl also shouted and then Imtiyaz and Manzoor and others came. Her father came after 10 minutes of her raising alarm. When the accused took her inside the room at that time also she had raised alarm. She had also received injuries. She had narrated the details of the case to the Investigating Officer as she stated in the Court. But if he did not record them in the her statement (under Section 161 Cr.P.C.) she could not explain. The police came after about half hour of the incident and the Investigating Officer had asked her about the incident same day also. The school has since been closed. She also went with her father to the Police station. She had shown her injuries to the Investigating Officer also.

15. Imtiyaz P.W.-3 who is an eye witness has stated that it was about 1 p.m. when he was near the mosque in Hayat Nagar and at that time Manzoor was also with him. They heard the cries of a girl coming from Shishu Shiksha Niketan and immediately went there. They opened the room from where the cries were coming. They opened the door which was not bolted from inside. They saw that accused was holding the daughter of Dil Nawaz and was embrassing her and also kissing her and touching her private parts. Nara was also opened and the girl was weeping. They enquired the prosecutrix as to what the accused had done with her and she told that he had teased her and had kissed her. At that time other people of the vicinity also came there and they apprehended the accused. He took the prosecutrix to her house and informed Dil Nawaz, about the incident. In cross examination he has stated that mosque is about 30-40 steps from the school. Dil Nawaz had reached

there within 10-15 minutes. They did not break open the door of the room. Police had also reached within 15 minutes of the incident. Police took out the accused and the prosecutrix from that room. He has also stated that he had already taken the prosecutrix to her house before the police came. He had not seen accused without clothes. He only saw that the 'salwar' of the prosecutrix had been taken off. He tied her 'salwar'. He did not see any injury on the person of the prosecutrix except that the cheeks had become red. He denied the suggestion that they had any complaint against the accused that he was misguiding the children by imparting education against their religion. He also denied the suggestion that they acting on religious or communal basis got the case lodged against the accused and that no incident as alleged had taken place.

16. Statements of the witnesses i.e. the prosecutrix as well as Imtiyaz f show that the accused had taken the girl inside the room and also outraged I her modesty. The girl raised alarm and the witness reached and the accused was apprehended in the room. However there is some improvement. When compared with the averments made in the first information report as the report was lodged by her father and she had informed her father about the incident. But the improvements do not demolish the entire prosecution case and point out to the indecent acts of the accused and the outraging of the modesty of the prosecutrix.

17. Learned Counsel for the appellant has contended that the prosecution has failed to establish the case under Section 354 IPC also against the accused as the statement of the prosecutrix has not been corroborated by her father who is not an eye witness. According to learned Counsel even the statement of P.W.-3 Imtiyaz does not corroborate her as the statement of Imtiyaz itself is not reliable as he is changing his statement now and then and such statement cannot corroborate. But this contention of the learned Counsel cannot be accepted. Although the father of the prosecutrix is not an eye witness but he reached soon after the incident and the indecent behaviour of the accused was narrated to him by his daughter. The witness Dil Nawaz, P.W.-l father of the prosecutrix has stated the same facts. There is no reason for the father to speak a lie. Had he been inimical he could have exaggerated the fact but he has made a statement as told by his daughter both in the first information report as well as in the court. Imtiyaz P.W.-3 also corroborates the statement as even though there is some variation in his statement but regarding the indecent behaviour of the accused, he is consistent and there is no reason to disbelieve him. Prosecutrix has also given an account of the acts done by the accused. Although there is some addition in the acts as narrated in the first information report or as seen by Imtiyaz but on this ground prosecutrix cannot be disbelieved. She has no reason for making false statement against the accused. Therefore her testimony itself is sufficient to prove that the accused outraged her modesty. In the instant case her statement finds corroboration from the testimony of her father as well as independent witness Imtiyaz.

18. Learned Counsel for the appellant has contended that the prosecutrix If had been tutored and that is why her statement was recorded next day by the investigating officer. According to him the reason for tutoring was that the complainant wanted to falsely implicate the accused at the instance of his, relation Muazzim and that by making such statement her family reputation was not to be effected as she was a girl of tender years and the prosecution also succeeded in its design as the school run by the accused was closed. But these fanciful arguments as advanced by the learned Counsel for the appellant are not tenable. If the modesty of a women is outraged her family

reputation is always at stake irrespective of the age of the victim. A prudent father is not expected to tutor her minor girl of tender years to make false statement involving herself. Informant had no enmity with the accused. Informant was not running any school and therefore there could be no business rivalry or business jealousy. It is not probable that the father would involve the reputation of his family members and future of his daughter to benefit a third person. If the accused was to be falsely implicated he could have been for any other cause. Moreover no such suggestion has been given to Dil Nawaz, P.W.-1 and the prosecutrix that he has been implicated at the instance of Muazzim.

19. Learned Counsel for the appellant has further submitted that learned Trial Court did not consider the evidence of the defense witness Smt. Usha Gupta. According to him, Smt. Usha Gupta is reliable witness and her testimony shows that no incident as alleged by the prosecutrix did take place. It is true that the testimony of a defense witness stands on the same footing as that of prosecution witness. But in the present case, presence of Smt. Usha Gupta D.W.-1 itself is doubtful. According to her she reached the school at 12 noon and stayed in the office with the accused up to 1.00 p.m. According to her, accused also remained in the office during this period. She had come to enquire about the vacancy of teachers and job. She could have got the information from the accused in a minute or two and there was no occasion for her to stay all the time till the people arrived in hundreds. School being run by the accused was not a new school and mostly Muslim children were studying in the school. The school was in the mohalla having 80% Muslim population. The other school was at a distance and even the children of Muazzim Danish were studying in this school. Therefore there was no occasion for the people of the Muslim community to have come for the closure of the school and to have beaten the accused. Smt. Usha Says that crowd that came and beat the accused took him to the police station. But W it is not the fact. Accused was taken from the place of occurrence by the police as has been stated by the witnesses and has also been mentioned in the general diary of the police station. Therefore Smt. Usha Gupta is a got up witness and the learned Trial Court has rightly not accepted her testimony.

20. Learned Counsel for the appellant has also contended that in this case investigation was tainted and was not fair. According to him the father and the victim were examined next day whereas they could and should have been examined same day. Site plan was made next day at the pointing of the father who was not an eye witness and not at the pointing of the victim. Witnesses of locality were not interrogated although Suhail is said to be an eye witness. He has also contended that there was apprehension of communal riot and the police was under pressure and the Investigating Officer in order to appease the Muslim community gave false charge sheet. Statement of the Investigating Officer as made and the investigation as conducted give an inkling of the fact that the communal tension was mounting. The investigation was completed in two days and the charge sheet was submitted under Sections 376 read with 511 IPC; although there were no allegations about the attempted rape in the first information report or the statement of the prosecutrix as given to the Investigating Officer. And it shows that charge sheet under these sections was purposive. But on this ground the entire case cannot be discarded. Communal tension was more likely to mount in case modesty of the girl was outraged than the refusal to close the school in which mostly children of that community were getting education and which was being run from some time. Although there was exaggeration in the charge sheet but the entire case was not false.

21. The facts and circumstances of the case, the statement of the prosecutrix show that the accused committed the offence punishable under Section 354 IPC only. The fact remains that even if the acts of the accused as narrated by the prosecutrix are accepted as such the act of the accused fall as short of attempt to commit rape as there was no attempt for penetration the (sic) quanon of the offence of rape. In order to make out the offence of attempted rape, attempt to penetration should be there. But in this case, there is even no such allegation. Therefore, learned trial court rightly convicted the accused under Section 354 IPC.

22. Section 354 IPC reads as under:

> Section 354: Assault or criminal force to woman with intent to outrage her modesty: Whoever assaults or uses criminal force to any woman, intending to outrage or knowing it to be likely that he will thereby outrage her modesty, shall be punished with imprisonment of either description for a term which may extend to two years or with fine, or with both.

23. From a bare reading of the above provision, it would be manifest that so far as the offence under Section 354 IPC is concerned, intention to outrage the modesty of the woman or knowledge that the act of the accused would result in outraging her modesty is the gravamen of the offence. The essence of a woman's modesty is her sex. The culpable intention of the accused is the crux of the matter. The reaction of the woman is very relevant, but its absence is not always decisive. This principle has been laid down by the Apex Court in the case of Tarkeshwar Sahu v. State of Bihar 2006(10) SBR 326.

24. In this case, accused who was a teacher outraged the modesty of a minor girl and student of his school. Thus conduct of the accused is deplorable. Thus, I come to the conclusion that the learned Trial Court has rightly concluded that the prosecution had been successful in establishing its case against the accused under Section 354 IPC and he has been rightly convicted and sentenced and there is no justiciable or justifiable ground to interfere in the impugned order and the appeal is devoid of merits and is liable to be dismissed.

25. Appeal is hereby dismissed. Appellant is on bail and his bail is cancelled and sureties are discharged. Accused shall surrender in the Trial Court forthwith and trial Court shall commit him to custody to serve out the sentence as awarded to him. In case accused does not surrender, learned Trial Court shall take necessary steps to commit him to custody. Copy of the Judgment be certified to Trial Court and the Trail court record be returned forthwith.